

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Melanyn Rivas	Team: Squad #09	CCRB Case #: 202007510	☒ Force	☒ Discourt.	☒ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 11/12/2020 5:30 PM	Location of Incident: Front of the 24th Precinct stationhouse.	18 Mo. SOL 5/12/2022	Precinct: 24		
Date/Time CV Reported Thu, 11/12/2020 6:01 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 11/12/2020 6:01 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Juan Rodriguez	04662	937408	024 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Bonardi	6579	968283	024 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Juan Rodriguez	Discourtesy: Detective Juan Rodriguez acted discourteously toward § 87(2)(b)	A . Unsubstantiated
B . DT3 Juan Rodriguez	Force: Detective Juan Rodriguez used physical force against § 87(2)(b)	B . Unsubstantiated
C . DT3 Juan Rodriguez	Force: Detective Juan Rodriguez used physical force against § 87(2)(b)	C . Substantiated
D . DT3 Juan Rodriguez	Off. Language: Detective Juan Rodriguez made offensive remarks to § 87(2)(b)	D . Unsubstantiated
E . DT3 Juan Rodriguez	Untruthful Stmt.: Detective Juan Rodriguez provided a false official statement to the CCRB.	E . Substantiated

Case Summary

On Thursday, November 12, 2020, Sergeant Stephen Collich of the 24th Precinct filed the following complaint via the CCRB's Call Processing System on behalf of § 87(2)(b).

On November 12, 2020, § 87(2)(b) went to the 24th Precinct stationhouse at approximately 5:30 p.m. and spoke with Detective Juan Rodriguez, of the 24th Precinct Detective Squad, outside the front doors of the stationhouse. Det. Rodriguez held § 87(2)(b) ID as they spoke, and after he told § 87(2)(b) that he could not release his belongings that were in NYPD custody, he allegedly threw the ID on the ground (**Allegation A: Discourtesy – Action, unsubstantiated**). Directly after, Det. Rodriguez stepped forward and told § 87(2)(b) “Get off my property.” Det. Rodriguez then pushed § 87(2)(b) right shoulder (**Allegation B: Force – Physical force, unsubstantiated**). Det. Rodriguez then walked § 87(2)(b) to the public sidewalk and pushed him again (**Allegation C: Force – Physical force, substantiated**). As Det. Rodriguez turned around to head back into the stationhouse, he allegedly used unspecified profanity toward § 87(2)(b) (**Allegation D: Offensive Language – Other, unsubstantiated**). § 87(2)(b) then left the front of the stationhouse.

On March 26, 2021, Det. Rodriguez provided a false official statement to the investigation (**Allegation E: Untruthful statement – False official statement, substantiated**).

Video was obtained by the investigation from the 24th precinct stationhouse (**Board Review, 1**). Body-worn camera footage was requested from NYPD Legal on December 23, 2020; however, no body-worn camera footage was found regarding the incident (**Board Review, 10**). Per the patrol guide procedure, the activation of body-worn camera footage for this incident was not mandatory. § 87(2)(b) was not arrested, and he did not receive a summons in relation to the incident in question.

Findings and Recommendations

Allegation (A) Discourtesy: Detective Juan Rodriguez acted discourteously toward § 87(2)(b).

It is undisputed that Det. Rodriguez returned § 87(2)(b) ID outside of the 24th Precinct stationhouse.

During his CCRB interview, § 87(2)(b) stated that he went to the 24th Precinct stationhouse to retrieve his belongings that were in NYPD custody (**Board Review, 08**). Det. Rodriguez told § 87(2)(b) that he did not have the authority to release the items, and § 87(2)(b) told Det. Rodriguez that he had been told by several parties that Det. Rodriguez had the authority to release his items. Det. Rodriguez reiterated that he did not have the authority to provide him with his items. Det. Rodriguez then held out § 87(2)(b) ID telling § 87(2)(b) to take the ID. In response, § 87(2)(b) told Det. Rodriguez that he wanted his items. Det. Rodriguez then turned to witnessing Police Officer Joseph Bonardi, of the 24th Precinct, and said, “You see? I’m trying to give him his ID.” Det. Rodriguez stated to § 87(2)(b) “You don’t want your ID?” and proceeded to throw the ID across the ground (**Board Review, 08**).

In his statement to the CCRB, Det. Rodriguez stated that he attempted to return § 87(2)(b) ID (**Board Review, 07**). Det. Rodriguez explained that after telling § 87(2)(b) which documents he needed to provide to get his items back, § 87(2)(b) began to curse at him. Det. Rodriguez tried to end the conversation by handing § 87(2)(b) his ID. Det. Rodriguez said that he stuck his hand out to pass § 87(2)(b) ID, he then saw § 87(2)(b) hand coming up and he “gave it to him.” Det. Rodriguez said he was unsure whether § 87(2)(b) had “dropped or fumbled” the ID because he was turning around and walking away. Det. Rodriguez stated that he did not toss, nor deliberately throw § 87(2)(b) ID on the ground.

In his interview with the CCRB, PO Bonardi stated that he did not recall observing any interaction between § 87(2)(b) and Det. Rodriguez (**Board Review, 09**). Upon being presented the stationhouse footage, PO Bonardi stated that it did not refresh his recollection of this incident.

The stationhouse footage received by the investigation does not depict this portion of the

incident under investigation (**Board Review, 01**).

§ 87(2)(g)

Therefore, we recommend that **Allegation A** be closed as *unsubstantiated*.

Allegation (B) Force: Detective Juan Rodriguez used physical force against § 87(2)(b)

It is undisputed that Det. Rodriguez told § 87(2)(b) to leave stationhouse grounds on November 12, 2020.

In his interview with the CCRB, § 87(2)(b) explained that he was standing on the second of the five steps leading to the front doors of the 24th Precinct stationhouse (**Board Review, 08**). As he stood there, Det. Rodriguez told § 87(2)(b) “Get off my property.” Det. Rodriguez then proceeded to push § 87(2)(b) on his right shoulder.

In his interview with the CCRB, Det. Rodriguez stated that at no point did he push, strike, grab, or hit § 87(2)(b) (**Board Review, 07**).

As part of his testimony, PO Bonardi stated that he did not recall observing any interactions between § 87(2)(b) and Det. Rodriguez. (**Board Review, 09**).

The stationhouse footage received by the investigation does not depict this portion of the incident under investigation (**Board Review, 01**).

Patrol Guide Procedure 221-01 states, “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, any application or use of force must be reasonable under the circumstances” (**Board Review, 05**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *unsubstantiated*

Allegation (C) Force: Detective Juan Rodriguez used physical force against § 87(2)(b)

It is undisputed that Det. Rodriguez pushed § 87(2)(b) while he was standing on the public sidewalk, in front of the 24th Precinct stationhouse.

The 24th Precinct stationhouse footage received by the investigation depicts the exterior front of the stationhouse, where standard NYPD barricades are set up to the left and to the right of a walkway that leads from the public sidewalk to the 24th Precinct stationhouse entrance (**Board Review, 01**). From 49:09 to 49:12, the stationhouse video depicts an interaction between Det. Rodriguez and § 87(2)(b). Initially, Det. Rodriguez sticks his hand out in an open palm and touches § 87(2)(b) chest/shoulder guiding § 87(2)(b) backward past the stationhouse grounds. The stationhouse video then depicts Det. Rodriguez extending his hand out with an open palm a second time, this time pushing § 87(2)(b) in the chest as § 87(2)(b) stood on the public sidewalk.

In his interview, § 87(2)(b) made no mention of making a threatening comment to Det. Rodriguez (**Board Review, 08**). Additionally, § 87(2)(b) stated that directly after throwing his ID, Det. Rodriguez told him to get off his property. It was then when Det. Rodriguez began walking towards him and placed his hand on § 87(2)(b) chest for the first time. § 87(2)(b) said that he started taking steps backwards as he did not want to escalate the situation. However, Det. Rodriguez continued walking towards him. § 87(2)(b) stated that it was then Det. Rodriguez then made physical contact with his body by pushing him, a second time.

Det. Rodriguez stated that after speaking with § 87(2)(b) about his items he began to walk back into the stationhouse. It was then when § 87(2)(b) threatened him by saying, “Get out of here before I fucking smack you” (**Board Review, 07**). Following § 87(2)(b) threat, Det. Rodriguez told § 87(2)(b) to get back and move outside the barricades that were set up bordering the 24th Precinct

property line. Det. Rodriguez then started walking towards § 87(2)(b) telling him “You need, for our safety, to get back.” Det. Rodriguez explained that at this point § 87(2)(b) did not move back. Det. Rodriguez then stuck his hand out with an open palm and § 87(2)(b) began to walk backwards. During his interview with the CCRB, Det. Rodriguez stated, “he just started walking backwards when I stuck my hand out.” Det. Rodriguez said he believed he may have made contact with § 87(2)(b) body at that point, but never pushed him. Det. Rodriguez did not make any mention of making contact with § 87(2)(b) a second time as § 87(2)(b) stood on the sidewalk past the barricades.

During his interview, Det. Rodriguez was shown stationhouse footage from 49:09 to 49:12 (**Board Review, 01**). After seeing the footage, Det. Rodriguez acknowledged seeing an interaction in front of the stationhouse. Det. Rodriguez said the video allowed him to recall that his statements were correct. He mentioned that he had escorted § 87(2)(b) outside the building and then walked away. Det. Rodriguez stated that at no point did he push, strike, grab, or hit § 87(2)(b).

In his testimony, PO Bonardi, who was present during the interaction, stated that the sidewalk adjacent to the 24 Precinct stationhouse is considered public area, meaning that § 87(2)(b) was no longer on stationhouse grounds after being walked back by Det. Rodriguez (**Board Review, 09**).

Patrol Guide Procedure 221-01 states, “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, any application or use of force must be reasonable under the circumstances” (**Board Review, 05**).

§ 87(2)(g)

it is recommended that **Allegation C** be closed as *substantiated*.

Allegation (D) Offensive Language: Detective Juan Rodriguez made offensive remarks to § 87(2)(b)

It is undisputed that Det. Rodriguez spoke with § 87(2)(b) outside of the 24 Precinct stationhouse.

During his interview with the CCRB, § 87(2)(b) stated that after Det. Rodriguez pushed him, and § 87(2)(b) called him a “bitch” (**Board Review, 08**). § 87(2)(b) stated that Det. Rodriguez used profanity in response. § 87(2)(b) did not recall what Det. Rodriguez said or which profane words he used.

Det. Rodriguez stated that § 87(2)(b) used profanity towards him (**Board Review, 07**). However, Det. Rodriguez stated that he did not use profanity against § 87(2)(b).

As part of his testimony, PO Bonardi stated that he did not remember whether Det. Rodriguez had used profanity towards § 87(2)(b) (**Board Review, 09**).

The stationhouse footage obtained by the investigation did not capture any audio (**Board Review, 01**). No other audio or video recording was available to the investigation.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as *unsubstantiated*.

Allegation (E) Untruthful Statement: Detective Juan Rodriguez provided a false official statement to the CCRB.

It is undisputed that Det. Rodriguez used physical force against § 87(2)(b) outside of the 24 Precinct stationhouse.

From 49:09 to 49:12, the stationhouse video depicts an interaction between Det. Rodriguez and § 87(2)(b) (**Board Review, 01**). Initially, Det. Rodriguez sticks his hand out in an open palm and touches § 87(2)(b) chest/shoulder guiding § 87(2)(b) backward past the stationhouse grounds.

Stationhouse video then depicts Det. Rodriguez extending his hand out with an open palm a second time, this time pushing § 87(2)(b) in the chest.

In his interview with the CCRB, Det. Rodriguez denied pushing § 87(2)(b) (Board Review, 07). Upon being shown stationhouse footage from, 49:09 to 49:12, Det. Rodriguez maintained that he did not push § 87(2)(b). Det. Rodriguez did not offer any other explanation for the discrepancy between his testimony and the video footage.

Per *NYPD Patrol Guide Procedure 203-08*, an officer is prohibited from intentionally making a false official statement regarding a matter material to a CCRB investigation (Board Review, 11).

§ 87(2)(g) it is recommended that Allegation E be closed as *substantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review, 02).
- Det. Rodriguez has been a member of service for sixteen years and has been a subject in 4 CCRB complaints and 12 allegations, of which four were substantiated. § 87(2)(g)
 - 201306200 involved substantiated allegations of Force - Physical force, Abuse – Frisk, Abuse - Search (of person), Abuse – Stop. The NYPD imposed forfeiture of vacation (10 days) for each of the allegations.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of April 23, 2021, the New York City Comptroller's Office does not have record of any notice of claims filed by § 87(2)(b) (Board Review, 06).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 9

Investigator:	<u>Melanyn Rivas</u>	<u>Investigator Melanyn Rivas</u>	<u>08/12/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Wassim Abedrabbo</u>	<u>SI Wassim Abedrabbo</u>	<u>08/19/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date